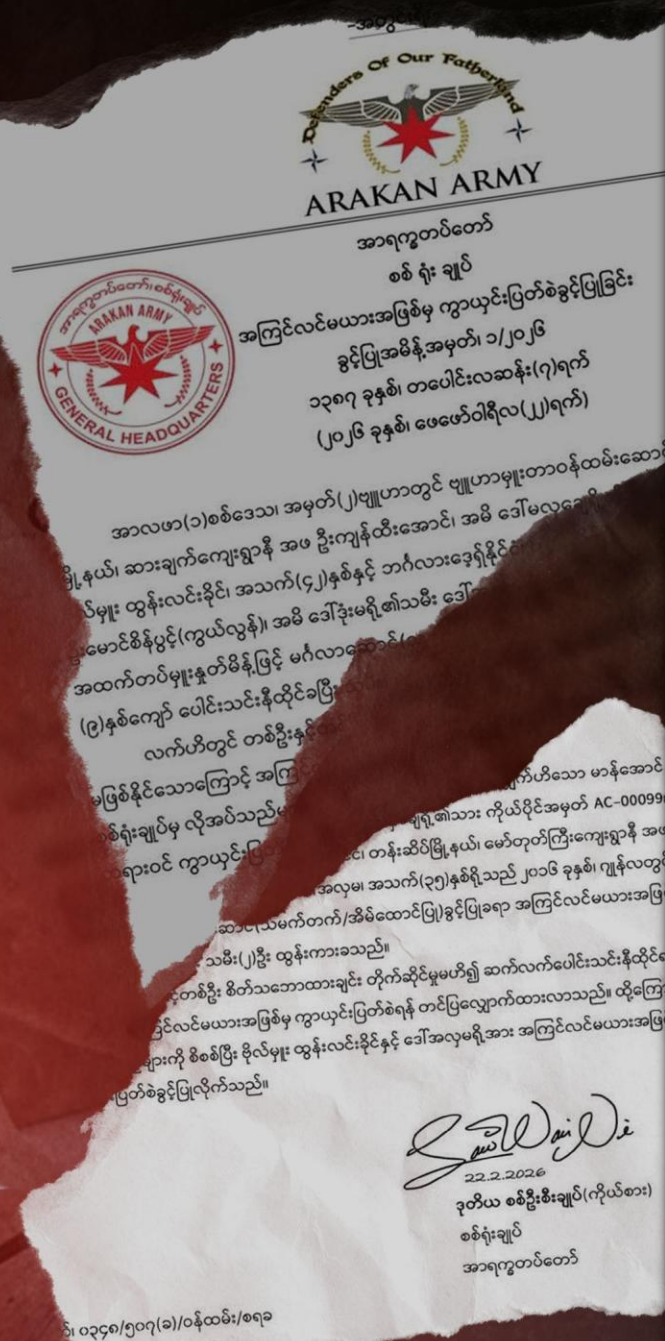


BEHIND A “DIVORCE APPROVED” LETTER

POWER WOMEN’S RIGHTS and AA

INVESTIGATIVE ARTICLE

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Behind a Letter Stating “Divorce Has Been Granted”

Chapter 1: Initial Findings

During periods of war and revolution, people often face a combination of powerlessness, economic hardship, and security risks. During such periods, married couples may endure these difficulties together, and family relationships can become an important source of mutual support and reliance.

However, following military or revolutionary victories, an individual’s social status and access to power may change rapidly. This can be particularly significant for individuals who rise to positions of authority within military or political organizations. Relationships with families with whom they previously lived in poverty and hardship may subsequently come into conflict with their newly acquired power, social status, and personal choices.

This article examines, based on the testimony of **Daw Ma Phyu** (pseudonym), a marital case involving the **ULA/AA**, and compares it with the phenomenon of “**cadre divorce**” that occurred in China during the 1950s.

According to the testimony obtained, Daw Ma Phyu married a member of the ULA/AA in June 2016, reportedly following a verbal order from a senior commander. The couple subsequently had two daughters.

According to her testimony, in 2026, without her prior consent, notification, or opportunity to participate in any discussion or negotiation, she received a letter stating that “**divorce has been granted,**” together with an audio recording, sent to her via Telegram. She was informed by her husband that they were no longer considered husband and wife.

According to the testimony, the husband had been living with another woman. In this case, there is no clear indication that the woman directly concerned was given an opportunity to provide her consent, to be heard, or to exercise any right to appeal or seek legal redress in relation to the divorce.

This incident therefore raises questions beyond a private marital dispute. It points to the broader relationship between **organizational power and women’s individual rights**, particularly concerning the extent to which institutional authority may affect a woman’s autonomy, participation, and rights within marriage and family life.

The “Cadre Divorce” Phenomenon in China

After the establishment of the People’s Republic of China in 1949, the **Marriage Law of 1950** was enacted. The law introduced significant legal changes concerning freedom of marriage, the

right to choose one's spouse, and the right to divorce. However, during its implementation, the decisions and administrative authority of local Party cadres exercised considerable influence over the application of the law.

In the early 1950s, some male cadres from rural backgrounds were transferred to urban areas to assume official positions following the success of the revolution. During this period, research has documented cases in which some cadres began to favor women who were better educated and from urban backgrounds over the wives with whom they had previously lived in rural areas.

Some male cadres subsequently sought divorces from their rural wives in order to leave them and marry urban women. One study has observed that, as a consequence of these divorces, rural wives were exposed to social stigma, economic hardship, and psychological distress.

In some cases, wives did not wish to divorce. Nevertheless, because the husbands possessed greater **Party/cadre status and social authority**, they were in a stronger position to exert pressure during the divorce process, creating a significant **power imbalance** between the spouses. Consequently, research has documented circumstances in which wives were placed in a position where it was difficult, or even impossible, for them to resist their husbands' wishes.

Similarities Between the Case of Daw Ma Phyu and the Historical "Cadre Divorce" Phenomenon in China

A comparative examination of the two cases reveals several **structural similarities**, as outlined below.

First — Family Relationships During War and Revolutionary Periods

In both cases, family life was formed and maintained within difficult political and military circumstances. The marital relationships developed against the backdrop of periods characterized by war, revolution, and broader social and political instability.

Second — The Rise of Male Authority and Social Status

In the Chinese cases, the husband's social and political status increased after he became a **Party cadre**, which also enhanced his position and influence within society.

According to Daw Ma Phyu's testimony, her husband was likewise described as a **senior official within the ULA/AA**. His position within the organization therefore potentially placed him in a position of greater authority and influence than his wife.

Third — The Wife's Consent and the Power Imbalance

In the Chinese cases, decisions concerning marriage and divorce were closely connected to the authority exercised by local Party cadres. In practice, despite the principles established by China's **1950 Marriage Law**, there were cases in which local cadres or judges exercised significant influence over divorce decisions, including situations where both spouses did not appear to have equal bargaining power or where the wife did not wish to divorce.

Similarly, according to Daw Ma Phyu's testimony and the photographic evidence available, the divorce was not presented as the result of a private discussion or mutual decision between the husband and wife. Instead, she was reportedly informed through an **order or written communication associated with a military organization**, together with an audio recording from her husband.

This raises a significant issue concerning whether the wife's **free and informed consent, opportunity to be heard, and ability to participate in the decision-making process** were adequately respected.

Fourth — Economic and Social Consequences

Research on cadre divorces in China indicates that rural wives who were divorced by male cadres faced significant **economic and social difficulties**, including the loss of family support and social stigma.

According to Daw Ma Phyu's testimony, the primary responsibility for the **livelihood and care of the two children** remained with her, while she reportedly did not receive adequate support from her former husband.

The comparison therefore suggests that, in both contexts, the consequences of divorce extended beyond the marital relationship itself and could have significant implications for the **economic security, social position, and well-being of the wife and children**.

An Important Distinction

In making historical comparisons, it is important not only to examine similarities but also to consider the differences between the two situations.

In China, although the **1950 Marriage Law** legally recognized freedom of marriage and the right to divorce, evidence from its local implementation indicates that cadres sometimes misapplied the law, pressured individuals who sought divorce, or obstructed divorces.

In the case of Daw Ma Phyu, there is likewise no clear indication of a proper investigation or hearing based on Myanmar's socially recognized norms and relevant legal principles. Nor is there evidence that the matter was mediated either by an authorized institution or by respected community elders in accordance with customary practices.

The absence of such processes appears significant because the husband's influence and authority were reportedly so much greater that the wife was placed in a position where she could not effectively challenge or oppose his decision.

“The Right to Divorce” and “Being Divorced” Must Be Distinguished

Under the principle of freedom of marriage, an individual may have the right to seek the termination of their marriage. However, that right should not be understood as a form of power that permits one spouse to disregard or undermine the fundamental rights of the other spouse.

In particular, the following rights and interests should be taken into consideration:

- **The right to know the reasons for the divorce**
- **The right to provide an explanation or present one's own position**
- **The right to be heard**
- **The right for the best interests of the children to be taken into consideration**
- **Rights concerning property, maintenance, and livelihood**
- **The right to fair review or appeal**

If a divorce is instead imposed unilaterally through institutional authority while these rights and interests are disregarded, the issue extends beyond the simple question of the “**right to divorce.**”

Such circumstances may be characterized as **institutional coercion**—the use of institutional power or authority to exert pressure on an individual.

The Warning Offered by Chinese History

The history of the implementation of China's **1950 Marriage Law** demonstrates the painful consequences that can arise when local cadres and administrative authorities become excessively involved in marital and family matters. Sociological research has documented circumstances in which women's rights and interests were undermined as a result of the exercise of such authority.

In some cases, women were unable to present adequate legal arguments or defenses, while divorce decisions were reportedly made or approved without sufficient consideration of their circumstances. Historical records indicate that, in **1953 alone, more than 1.17 million divorce cases were brought before courts across China.**

A new historical study of Guizhou published in **2026**, examining marital and family cases between **1950 and 1956**, likewise indicates that decisions made by local cadres had a particularly significant impact on women's livelihoods and ability to survive.

This history offers an important lesson: **when marriage and family relationships are placed under institutional control, law, political authority, and social interests can become intertwined very rapidly.**

Chapter 2: Analysis from a Human Rights Perspective

If Daw Ma Phyu's testimony is examined from a human rights perspective, a number of serious questions arise.

Women's Rights to Marriage and Justice from a CEDAW Perspective

When examining the incident described in Daw Ma Phyu's testimony from the perspective of women's rights, it is also necessary to consider the **Convention on the Elimination of All Forms of Discrimination against Women (CEDAW)**, to which Myanmar is a party. Myanmar acceded to CEDAW on **22 July 1997**.

The fundamental principle of CEDAW is to ensure that women enjoy equal rights with men and to eliminate discrimination against women. Marriage and family relations are particularly important areas because women can be especially vulnerable to violations of their rights within these contexts.

Equal Rights in Marriage and Divorce

Article 16 of CEDAW establishes the principle of equality between women and men in matters relating to marriage and the dissolution of marriage.

The CEDAW Committee's **General Recommendations Nos. 21 and 29** also place particular emphasis on women's equal rights within marriage and family relations, as well as the property and economic consequences arising from the dissolution of marriage.

Therefore, a man's desire to divorce his wife cannot, in itself, be characterized as a violation of women's rights. The more important questions are whether **the woman was afforded equal rights during the divorce process, whether her views were heard, whether the best interests of the children were taken into consideration, and whether her rights concerning property and livelihood were protected.**

According to the testimony, if Daw Ma Phyu was not given prior notice, an opportunity for consultation, or a meaningful opportunity to be heard, and instead learned of the divorce through an institutional letter and an audio recording, this raises a serious allegation that **a woman was denied equal participation in decisions concerning her own marriage and family life.**

Divorce Should Not Become an Exercise of Unilateral Power

From a CEDAW perspective, the dissolution of marriage should not be used as a means of depriving women of their economic and social rights.

In particular, following a divorce, consideration should be given to:

- Property acquired during the marriage;
- The care and financial support of the children;
- Equal parental rights and responsibilities of mothers and fathers; and
- The woman's right to earn a livelihood.

The CEDAW Committee has likewise emphasized the need to ensure equal protection of women's and men's parental and property rights following the dissolution of marriage.

Therefore, the issue is not simply whether a letter has been issued stating that **“the divorce has been granted.”** The more important question is **how the economic rights and interests of the woman and the children were protected following the divorce.**

ULA/AA and CEDAW Standards

There is an important legal distinction that must be made here.

CEDAW is an international human rights treaty concluded between States. Therefore, **ULA/AA cannot be directly treated as a “CEDAW State Party” in the same manner as Myanmar.**

However, if ULA/AA exercises **de facto administrative and judicial authority** in certain territories and makes decisions affecting the daily lives and family affairs of the population, it is reasonable to argue that it should respect applicable international human rights standards concerning women's rights and human dignity.

The CEDAW Committee's **General Recommendation No. 30** specifically addresses the responsibilities of non-State armed groups that exercise significant control over territory and populations. It emphasizes the need for such groups to respect women's rights and, in conflict and post-conflict situations, to protect women from gender-based violence and other violations of their rights.

Accordingly, the argument that **“CEDAW applies only to States”** would be a weak justification for disregarding international standards concerning women's rights.

In particular, where an organization exercises administrative, judicial, and public authority over a population, it can be argued that **those exercising such authority have a heightened responsibility to respect human rights standards.**

A Woman's Right to Access to Justice

According to Daw Ma Phyu's testimony, one of the central problems is that she was apparently unable to clearly determine where she could file a complaint if she wished to challenge the

divorce, who would review her complaint, or which institution would provide her with an independent hearing.

She reportedly submitted petitions to senior authorities. From a human rights perspective, **divorce itself is not necessarily a human rights violation; however, the fact that she had to rely on a petition-based system to seek reconsideration raises serious concerns about the availability of an effective and fair justice mechanism.**

Why should an effective judicial or adjudicative mechanism not be established to enable a woman to obtain justice?

From a social perspective, Daw Ma Phyu had reportedly remained loyal to her husband, who was associated with the ULA/AA, even before the organization achieved its subsequent successes and increased influence.

This situation is directly connected to the concept of **access to justice**.

A woman should be able to freely challenge, explain, and seek review of a decision affecting her marriage, children, property, and economic rights.

The **power imbalance** may become even more severe where the decision-maker is a powerful military organization and the woman on the other side is the wife of a member of that same organization.

In such circumstances, where there is no independent judicial or hearing mechanism, the woman may, in practice, have little or no meaningful opportunity to challenge the decision of those exercising power over her.

The Rights of the Two Children

This case concerns not only the rights of a woman but also the **rights and interests of the two children**.

Although parents may have the right to make decisions concerning the termination of their marriage, the children's access to food, education, healthcare, and psychological security should not be adversely affected by the personal conflict between their parents.

Therefore, whether the children's educational expenses or other forms of financial support were linked to pressure concerning whether photographs on social media should be deleted or retained is also a matter requiring separate investigation.

When “Revolutionary Power” Becomes “Personal Power”

When this incident is examined through both the history of China’s **cadre divorce** phenomenon and a CEDAW perspective, a deeper question emerges:

Can institutional power created in the name of a revolution eventually become power that is used for the personal interests of individuals rather than in accordance with the organization’s own rules and principles?

If a man and a woman endured hardship together during a revolutionary period, but the man later acquired power and used that power to disregard the woman’s consent and her right to be heard, the issue would go beyond an ordinary family dispute.

It becomes a question of **power imbalance, women’s rights, and the rule of law.**

Conclusion

The fundamental principle of CEDAW is to ensure that women enjoy equal human rights with men. Marriage and divorce are not areas excluded from this principle of equality.

Furthermore, if ULA/AA exercises administrative and judicial authority in certain territories, it can be argued that **the greater the extent of authority exercised over a population, the greater the corresponding responsibility to respect women’s rights, human rights, and standards of fair procedure.**

Therefore, rather than viewing CEDAW merely as a treaty that can be applied only to the Government of Myanmar, it may also be used as an **international normative and accountability benchmark for organizations—including ULA/AA—that exercise authority over a population in a particular territory, particularly with respect to the protection of women’s rights.**

This investigative article presents the case from that perspective.

Note: The events concerning Daw Ma Phyu described in this article are based on the testimony of the person concerned. Matters that remain to be independently corroborated are not presented as established facts. A pseudonym has been used to protect the identity, safety, and privacy of the person concerned.

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